

What is evident in the first 15 pages is that Defendant failed to comply with its discovery obligations. Counsel did not respond to any meet and confer attempts, and did not make a good faith attempt to respond to discovery. Plaintiff provided a declaration outlining a one-sided attempt to meet and confer, and Defendant did not rebut that with any declaration at all. Moreover, while some document requests may be capable of overbroad interpretations, the obligations do not stop there. They must produce relevant responsive documents that are within the scope of the request, while rightfully refusing to produce non-relevant or privileged documents, and explaining the process. Moreover, Defendants cannot decline to produce documents based on a professed misunderstanding of basic terms without offering their own definition and producing documents consistent with that definition. (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 783 “A party may not deliberately misconstrue a question for the purpose of supplying an evasive answer. Indeed, where the question is somewhat ambiguous, but the nature of the information sought is apparent, the proper solution is to provide an appropriate response.”)

Plaintiff’s motion is granted. The court orders sixty days to comply with this order. Defendant Teranexsys LLC shall serve code-compliant, objection free, verified responses, along with responsive documents for the following: Requests for Production of Documents – Set One.

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, “without substantial justification, an unmeritorious objection to discovery, “ to make “an evasive response to discovery” and to make or oppose “unsuccessfully without substantial justification a motion to compel or to limit discovery,” or to fail to meet and confer to resolve discovery disputes informally. Cal. Code of Civ. Proc. § 2023.020 states that the Court “shall impose a monetary sanction ordering that any party or attorney who fails to confer as required pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” In this case, in light of everything discussed above, Sanctions in the amount of \$3,500 are granted and payable by Defendant within 20 days of service of this order.

**12. 9:00 AM CASE NUMBER: MSC21-00588**  
**CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION**  
**HEARING ON SUMMARY MOTION JUDGMENT RE PLTFS CLAIMS**  
**FILED BY: AMERICAN EQUIPMENT COMPANY**  
**\*TENTATIVE RULING:\***

Continued by the Court’s own motion to April 23, 2026 at 9:00 a.m. in this Department.

**13. 9:00 AM CASE NUMBER: MSC21-00588**  
**CASE NAME: SHARMA VS. ARS ALEUT CONSTRUCTION**  
**HEARING ON SUMMARY MOTION JUDGMENT RE NORCAL'S AND PETERSON HOLDING COMPANY'S CLAIMS**  
**FILED BY: AMERICAN EQUIPMENT COMPANY**  
**\*TENTATIVE RULING:\***

Continued by the Court’s own motion to April 23, 2026, at 9:00 a.m. in this Department.

**14. 9:00 AM CASE NUMBER: N25-0353**